

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANTHONY ROSS,
Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, and POLICE OFFICERS
PALMER, SANTIAGO, SANCHEZ and JOHN DOE #1-3,
the individual defendants sued in their individual capacities,

Defendants.
-----X

Plaintiff, ANTHONY ROSS, ("ROSS" and "Plaintiff") by and through his attorneys, The
Aboushi Law Firm, PLLC, complaining of the defendants, respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. On the evening of May 17, 2018 at approximately 8:00 P.M., Plaintiff was lawfully present at the intersection of 116th street and Manhattan Avenue in Manhattan when Defendants subjected Plaintiff to, among other things, unlawful search and seizure, assault, battery, negligence, negligent infliction of emotional distress, intentional infliction of emotional distress, false arrest, failure to intervene, and respondeat superior liability.

II. JURISDICTION AND VENUE

3. On June 25, 2018, and within ninety (90) days after the claim herein arose, Plaintiff served a Notice of Claim and has satisfied all administrative requirements.
4. More than 30 days have elapsed since Plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant has neglected and/or refused to make any adjustment and/or payment.
5. This action is being commenced within one year and ninety days of the date of the occurrence herein.
6. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County.

III. THE PARTIES

7. The Plaintiff ANTHONY ROSS is an African American young man and a resident of the City of New York, County and State of New York.
8. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
9. Defendant THE CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.
10. That at all times hereinafter mentioned, the Defendant New York City Police Officers Palmer, Sanchez, Santiago and "John Does 1-3" (collectively, "Defendant 'John Doe' Police Officers"), were duly sworn Police Officers of said department and were acting under the supervision of said department and according to their official duties.

11. That at all times relevant to this action, the Defendant New York City Police Officers Palmer, Sanchez, Santiago and “John Does 1-3”, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

IV. FACTUAL ALLEGATIONS

12. On May 17, 2018 Plaintiff emerged from his neighborhood bodega and was standing outside among a group of people when two unmarked police cars pulled up. Plaintiff was wearing a black sweatshirt and black sweatpants without pockets.

13. Plaintiff and his childhood friend, Saquan walked away and the driver of the police vehicle pulled the car in front of them.

14. Defendant Palmer stopped Ross, began interrogating him and asked Plaintiff where he was going. Ross told Defendant Palmer that he was going home.

15. Defendant Palmer told Plaintiff he was going to search him. Plaintiff refused and did not consent to the search. Plaintiff asked why he was being stopped and searched. Palmer refused to give him an answer and instead began aggressively searching Plaintiff.

16. Defendant Palmer asked Plaintiff if he had any guns on him and Plaintiff said no.

17. Defendant Palmer patted and swiped Plaintiff’s neck, shoulders and arms. Defendant Palmer then patted his chest and checked Plaintiff’s waistband.

18. Defendant Palmer then aggressively grabbed Plaintiff’s genital demanding he produce a gun. Plaintiff repeated that he did not have a gun.

19. Defendant Palmer said he was not satisfied and wanted to search him again. Defendant Officer Palmer then placed Plaintiff in handcuffs and searched him again three (3) times.

Each time he searched Plaintiff, Defendant Palmer aggressively grabbed Plaintiff's genitals.

20. Soon after Plaintiff was unlawfully arrested and searched, a helicopter was called over to shine light over Plaintiff. Another unmarked police vehicle pulled up in front of Plaintiff and Palmer- who was holding Plaintiff by his handcuffed hands.

21. Defendant Palmer pushed Plaintiff to stand in front of the unmarked car and told him there was a witness inside the vehicle and directed Plaintiff to face the rear passenger window. Defendant Palmer then told Plaintiff the witness did not identify him as the shooter.

22. Instead of releasing Plaintiff, Defendant Palmer tightened the handcuffs and placed Plaintiff in a police vehicle. Plaintiff sat in the vehicle for approximately thirty minutes while complaining that the handcuffs were too tight as he lost sensation in his thumbs.

23. Defendant Palmer refused to loosen the handcuffs, as did the officer waiting in the vehicle with Plaintiff. At no time were the handcuffs removed until Plaintiff was taken to the 28th precinct.

24. Upon arriving to the 28th precinct, Defendants Santiago and Officer John Doe Searched Plaintiff again.

25. Ross was then escorted to the pen and was told to remove his shoelaces and hoodie strings.

26. Defendants Santiago and Sanchez took Ross to the back room where two other detectives were present.

27. Defendant Santiago forced Ross to strip his clothes. Defendant Santiago directed Plaintiff to take everything off including his socks.

28. Plaintiff asked why he was being forced to strip naked and Defendant Santiago threatened that if he refused he would taser him.
29. Defendant Santiago directed Plaintiff to remove each article of clothing individually.
30. Plaintiff was petrified, humiliated, embarrassed and violated as he removed all of his clothes and stood naked in the presence of several police officers and detectives.
31. Defendant Santiago then demanded Plaintiff turn around, squat, spread his butt cheeks and cough.
32. Plaintiff again asked Defendant Santiago and the audience of NYPD officers and detectives why he was being strip-searched and forced into the humiliating position.
33. Defendant Santiago angrily yelled that if Plaintiff did not comply, he would tase him.
34. Humiliated and distraught, Plaintiff complied with Defendant Santiago's command.
35. As Plaintiff stood back up, Defendant Santiago told Plaintiff to do it again because he was not satisfied.
36. Plaintiff pleaded with Defendant Santiago and the other officers to stop the abuse.
37. Defendant Santiago screamed at Plaintiff to do it again or else he would tase him. The audience of NYPD officers and detectives smirked and laughed at Plaintiff as they watched him repeat the humiliating and unlawful act.
38. Thereafter Plaintiff was naked for at least five minutes before Defendant Santiago permitted him to dress.
39. At no time was Plaintiff finger printed or photographed.
40. After several hours in a holding cell, Defendant Palmer removed Plaintiff from the cell and told him he was free to go because the shooter was Hispanic.

41. Defendant Palmer then patted Plaintiff on the shoulder and apologized for the “inconvenience” as he and his fellow officers laughed at Plaintiff.
42. At the time of the May 17, 2018 incident and arrest of Plaintiff, Plaintiff did not have a warrant out for his arrest, was not in possession of a weapon of any sort and was not in possession of a controlled substance of any sort.
43. At the time of the May 17, 2018 incident and arrest of Plaintiff, Plaintiff was not engaged in any illegal activity of any kind, but instead Plaintiff was lawfully standing on the corner of 116th Street and Manhattan Avenue.
44. As a result of the foregoing, Plaintiff Anthony Ross sustained, *inter alia*, physical and mental injuries, emotional distress, embarrassment, deprivation of property, humiliation, and deprivation of his constitutional rights.

**AS A FIRST CAUSE OF ACTION
FALSE ARREST, FALSE IMPRISONMENT,
UNLAWFUL SEARCH, STRIP-SEARCH AND SEIZURE
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

45. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
46. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual Defendants and their agents, servants and employees, were carried out under the color of state law.
47. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
48. The aforementioned individual defendants in their capacities as Police Officers carried

out the acts complained of, with all of the actual and/or apparent authority attendant thereto.

49. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was unlawfully groped, strip-searched, seized and was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

50. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

**AS A SECOND CAUSE OF ACTION
FALSE ARREST, FALSE IMPRISONMENT, UNLAWFUL SEARCH AND SEIZURE
UNDER NEW YORK STATE LAW**

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. Plaintiff was subject to illegal, improper and false arrests by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

53. Defendants are liable to Plaintiff because they strip-searched Plaintiff without probable cause, reasonable suspicion, or regard to the fact that no charges were alleged against him.

54. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

55. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A THIRD CAUSE OF ACTION
EXCESSIVE USE OF FORCE UNDER 42 U.S.C. §1983

56. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. Plaintiff was subjected to excessive force and was assaulted by Defendants in violation of his rights as guaranteed under the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

58. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

59. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A FOURTH CAUSE OF ACTION
FAILURE TO INTERVENE UNDER 42 U.S.C. §1983

60. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The Defendants collectively had an affirmative duty to intervene on the Plaintiff's behalf to prevent the violation of his constitutional rights.

62. The Defendants collectively failed to intervene on Plaintiff's behalf in order to prevent the violation of his constitutional rights despite having had a realistic opportunity to do so.

63. The Defendants collectively failed to intervene on Plaintiff's behalf in order to prevent the violation of his constitutional rights despite having substantially contributed to the circumstances within which the Plaintiff's rights were violated by their affirmative

conduct.

64. The Defendants collectively had failed to intervene on Plaintiff's behalf in order to prevent the violation of his constitutional rights despite their awareness that his rights were being violated.

65. Defendants instead mocked, laughed and were entertained by the humiliation and degradation of Plaintiff.

66. Defendants observed Plaintiff calling for help in that his handcuffs were extremely tight causing him to lose sensation in his thumbs knowing that Plaintiff neither had a gun nor was he identified by a witness as having any involvement in the case they were investigating.

67. Defendants' observed Plaintiff being groped several times and strip-searched under the guise of "searching for a gun" knowing that Plaintiff neither had a gun nor was he identified by a witness as having any involvement in the case they were investigating.

68. Defendants observed Plaintiff naked and in a compromising position **twice** and encouraged the violation of his constitutional rights knowing that Plaintiff neither had a gun nor was he identified by a witness as having any involvement in the case they were investigating.

69. As a result of the aforementioned conduct of the individual Defendants, Plaintiff's constitutional rights were violated.

70. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

71. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against

Defendants in a sum of money to be determined at trial.

AS A FIFTH CAUSE OF ACTION
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW

72. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

73. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiff placed him in fear of imminent harmful and offensive physical contacts.

74. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiff were illegal physical contacts.

75. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

76. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A SIXTH CAUSE OF ACTION
NEGLIGENT SUPERVISION, HIRING MONITORING, TRAINING AND
RETENTION OF EMPLOYEES UNDER NEW YORK STATE LAW

77. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

78. At all relevant times, Defendant City of New York and NYPD was the employer of the individual Defendant officers, and these individual Defendants were acting as its agents, servants and employees.

79. At all relevant times, Defendant City of New York maintained the New York City Police Department which acts under the direction and supervision of the aforementioned municipal corporation, City of New York.

80. Defendant City of New York failed to use reasonable care in the selection of its employees, against and/or servants, failed to properly train and/or supervise the individual defendants, and failed to provide the appropriate safeguards to prevent the excessive force, assault, harassment, negligence, and collective violation of the Plaintiff's rights.
81. Defendant City of New York and NYPD acted under color of law pursuant to an official policy or custom and practice of the Defendant City of New York and NYPD and intentionally, knowingly, recklessly or with deliberate indifference failed to properly and adequately control and discipline on a continuing basis its employees, agents and/or servants and/or otherwise failed to prevent the individual defendants from unlawfully and maliciously conducting, permitting or allowing the Constitutional violations alleged above in violation of the rights, privileges and immunities guaranteed to Plaintiff by the Constitution and laws of the United States and/or New York.
82. Defendant City of New York and NYPD had knowledge of, or had they diligently and reasonably exercised their duties to instruct, supervise, control, monitor and discipline its employees, agents and/or servants, would have had knowledge of the wrongful acts and/or omissions identified above and intentionally, knowingly or with deliberate indifference to Plaintiff's rights, failed or refused to prevent their commission and/or omission.
83. Defendant City of New York and NYPD, therefore, directly or indirectly, and under color of law, thereby approved or ratified the unlawful, malicious and wanton conduct of the individual Defendant police officers named herein.
84. Defendant City of New York is liable to Plaintiff because the occurrence and injuries

sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of Plaintiff contributing thereto, specifically, the negligent and reckless manner in which said Defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers.

85. The individual Defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against Plaintiff, including falsely arresting, assaulting, and battering Plaintiff.

86. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

87. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

88. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A SEVENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

89. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

90. The actions of the collective Defendants heretofore described, constituted unlawful detention, imprisonment, assault and battery and were designed to and did cause bodily harm, pain and suffering both in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, Fourth and

Fourteenth Amendments and the Constitution of the State of New York.

91. Collective Defendants' actions were undertaken under color of law and would not have existed but for Defendants using their official power.
92. Defendants' conduct was extreme and outrageous in that in looking for a *gun*, Defendants groped Plaintiff several times, forced him to strip naked, spread his butt cheeks and squat **twice** in the presence of several NYPD officers and detectives. Said conduct is beyond all possible bounds of decency, and is regarded as atrocious, and utterly intolerable in a civilized community because Defendants knew that Plaintiff did not have a gun and the witness/victim stated he was not involved in the case they were investigating.
93. Defendants' acted with intent to cause, or disregard of a substantial probability of causing, severe emotional distress to Plaintiff considering the fact Defendants did not have probable cause to search and seize Plaintiff, no weapon was found on his person and the witness did not identify him as the shooter. Defendants abused Plaintiff for their entertainment.
94. As a direct and proximate cause of Defendants unlawful acts mentioned above, Plaintiff has suffered such severe emotional distress that he was forced to move out of the State of New York.
95. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.
96. As a result of Defendants' unlawful conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS AN EIGHTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

97. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

98. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

99. The aforementioned conduct was committed by employees, servants and/or agents of Defendant City of New York while acting within the scope of their employment.

100. The aforementioned conduct was committed by employees, servants and/or agents of Defendant City of New York while acting in furtherance of their employment.

101. The aforementioned conduct was unnecessary, intentional and done for the sole purpose of causing severe emotional distress to Plaintiff.

102. The aforementioned conduct was negligent and caused severe emotional distress to Plaintiff.

103. Defendants are liable to Plaintiff because Defendants owed Plaintiff a cognizable duty of care as a matter of law and breached that duty.

104. Through their unlawful and negligent actions, as more fully described above, the Defendant officers intentionally and/or negligently inflicted emotional distress upon the Plaintiff.

105. The negligent, extreme and outrageous actions of the collective Defendants heretofore described directly caused Plaintiff extreme emotional distress and violated Plaintiff's rights as afforded to him by the United States Constitution and the Constitution of the State of New York.

106. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional

distress, anguish, anxiety, fear, humiliation, loss of freedom.

107. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A NINTH CAUSE OF ACTION
NEGLIGENCE

108. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

109. Defendant Officers threatened to inflict offensive physical contact or bodily harm on Plaintiff that put him in immediate danger of or in apprehension of such harm or contact by responding to Plaintiff's questions with a threat to tase him should he refuse to strip his clothing and if he refused to squat, spread his butt cheeks and cough.

110. Defendants are liable to Plaintiff because Defendants owed Plaintiff a cognizable duty of care as a matter of law and breached that duty.

111. The Defendant Officers subjected Plaintiff to the deprivation of his rights, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights guaranteed under the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution as well as the New York State Constitution and common law.

112. Defendants were negligent in how they treated Plaintiff. Defendant Police Officers committed these acts without legal justification or consent of Plaintiff.

113. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom.

114. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against

Defendants in a sum of money to be determined at trial.

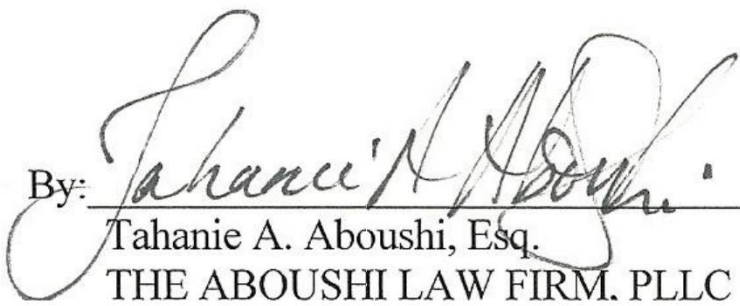
RELIEF REQUESTED

WHEREFORE, and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and;

- A. Award appropriate compensatory and punitive damages in an amount to be determined at trial for each cause of action stated herein including, without limitation, damages to physical well-being, emotional and psychological damages and past and future economic losses;
- B. Empanel a jury;
- C. Award Plaintiff attorney's fees and costs and pre-judgment interest; and
- D. Award Plaintiff such other and further relief as the Court may deem equitable, just and proper to remedy the Defendants' unlawful practices.

Dated: October 4, 2018

Respectfully Submitted,

By: 
Tahanie A. Aboushi, Esq.
THE ABOUSHI LAW FIRM, PLLC

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STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

ANTHONY ROSS, being duly sworn, deposes and says that deponent is the above-named Plaintiff; deponent has read the foregoing COMPLAINT and knows its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.


ANTHONY ROSS

Sworn to before me this
4 day of October 2018



Notary Public

JIANLING HU
NOTARY PUBLIC-STATE OF NEW YORK
No. 01HU6377382
Qualified in Queens County
My Commission Expires 07-02-2022